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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an) Case No. CGC-18-570137
individual,)
Plaintiff,)
vs.)
TARA WALSH, an individual;)
and DOES 1-20,)
Defendants.)
_____)
and related cross-action.)
_____)

DEPOSITION OF ABREHET TEDLA
San Francisco, California
Friday, April 26, 2019

Reported by:
ASHALA TYLOR, CSR #2436, CLR, CRR, RPR
JOB NO. 3303264

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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an) Case No. CGC-18-570137
individual,)
Plaintiff,)
vs.)
TARA WALSH, an individual;)
and DOES 1-20,)
Defendants.)
_____)
and related cross-action.)
_____)

Videotaped deposition of ABREHET TEDLA, taken at
Enenstein Pham & Glass, 604 Mission Street, 4th Floor,
San Francisco, California, commencing at 1:15 p.m. and
ending at 1:20 p.m., on Friday, April 26, 2019, before
Ashala Tylor, CSR No 2436, RPR, CRR, CLR.

1 APPEARANCES OF COUNSEL:

2

3 FOR THE PLAINTIFF AND CROSS-DEFENDANT STEPHEN RUSSELL:

4 ENENSTEIN PHAM & GLASS

5 BY: JOY LLAGUNO, ESQ.

6 NIMA KAMALI, ESQ.

7 12121 Wilshire Boulevard, Suite 600

8 Los Angeles, California 90025

9 310.899.2070

10 jllaguno@enensteinlaw.com

11 nkamali@enensteinlaw.com

12

13 FOR THE DEFENDANT AND CROSS-COMPLAINANT TARA WALSH:

14 (No appearance)

15

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17 Also Present:

18 Cassia Leet, Videographer

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I N D E X

WITNESS	EXAMINATION BY	PAGE
ABREHET TEDLA	Ms. Llaguno	6

E X H I B I T S

NO.	DESCRIPTION	PAGE
Exhibit 1	Subpoena and cover letter to Abrehet Asmelash Tedla, 4-2-19,	7

INFORMATION REQUESTED

(None)

QUESTIONS INSTRUCTED NOT TO ANSWER

(None)

1 San Francisco, California; Friday, April 26, 2019

2 1:15 p.m.

3 --oOo--

4 THE VIDEOGRAPHER: Good afternoon. We are
5 going on the record at 1:15 p.m. on April 26, 2019.

6 Please note that the microphones are
7 sensitive and may pick up cell phone interference.
8 Audio and video recording will continue to take
9 place unless all parties agree to go off the record.

10 This is Media Unit 1 of the video-recorded 01:15
11 deposition of Abrehet Tedla, taken by counsel for
12 plaintiff and cross-defendant in the matter of
13 Steven Russell versus Tara Walsh, et al., and
14 related cross actions filed in the Superior Court of
15 the State of California, County of San Francisco, 01:15
16 case number CGC-18-570137.

17 This deposition is being held at a
18 conference room located at 604 Mission Street, 4th
19 Floor, San Francisco, California 94105.

20 My name is Cassia Leet, and I'm the 01:16
21 videographer, here with the court reporter, Ashala
22 Tylor. We are from the firm Veritext Legal
23 Solutions. I am not related to any party in this
24 action nor am I financially interested in the
25 outcome. 01:16

1 Would counsel please state your 01:16
2 appearances and affiliations for the record.
3 MS. LLAGUNO: My name is Joy Llaguno,
4 counsel for plaintiff Steven Russell.
5 MR. KAMALI: And this is Nima Kamali, also 01:16
6 counsel for plaintiff Steven Russell.
7 THE VIDEOGRAPHER: Thank you.
8 Will the court reporter please swear in
9 the witness.
10 ABREHET TEDLA, 01:16
11 being first duly sworn or affirmed to testify
12 to the truth, the whole truth, and nothing but
13 the truth, was examined and testified as follows:
14 EXAMINATION
15 BY MS. LLAGUNO: 01:16
16 Q. Ms. Tedla, could you please state your
17 name for the record.
18 A. Abrehet Tedla.
19 Q. And spell your name, please.
20 A. A-B-R-E-H-E-T, T-E-D-L-A. 01:16
21 Q. And, Ms. Tedla, we're going to mark as
22 Exhibit 1 your subpoena and the cover letter for
23 your subpoena.
24 A. Uh-huh.
25

1 (Exhibit 1 was marked for 01:17
2 identification and attached
3 hereto.)

4 BY MS. LLAGUNO:

5 Q. Ms. Tedla, are you familiar with this 01:17
6 cover letter and subpoena?

7 A. No, this is my first time.

8 Q. You received it -- you were served this
9 subpoena, correct?

10 A. Uh-huh. 01:17

11 Q. And you had a chance to review the
12 subpoena?

13 A. Come again?

14 Q. You had a chance to read --

15 A. No, I haven't read it. 01:17

16 Q. -- the subpoena?

17 Would you please review it -- or if --
18 well, as you've stated earlier, Ms. Tedla, you are
19 refusing to testify.

20 A. Yes. 01:17

21 Q. I just want to get on the record that
22 you've appeared but are refusing to testify in this
23 matter.

24 A. Yes.

25 Q. Is that correct? 01:17

1 A. Yes, yes. 01:17

2 Q. Thank you, Ms. Tedla. I guess that's --

3 that's all we need to say.

4 A. Can I say something? Am I allowed to say

5 something? 01:17

6 Q. What --

7 MS. LLAGUNO: Can we go --

8 THE WITNESS: My advice that --

9 MS. LLAGUNO: Actually, I'm sorry, can we

10 go off the record? 01:18

11 THE VIDEOGRAPHER: Sure.

12 THE WITNESS: No, on the record.

13 MS. LLAGUNO: Okay. On the record.

14 THE WITNESS: Yeah. When I found out it's

15 not at the -- what you call -- what is called? 01:18

16 Q. The Court?

17 A. The Court. That I called a friend of

18 mine. He told me I have a right not to if I don't

19 want to. So that's why I'm refusing --

20 (Reporter clarification.) 01:18

21 A. I'm refusing to testify because he said I

22 have a right.

23 MS. LLAGUNO: Okay. Thank you, Ms. Tedla.

24 THE WITNESS: Yeah.

25 THE VIDEOGRAPHER: This concludes today's 01:18

1 deposition of Abrehet Tedla. The number of media 01:18
2 used was one and will be retained by Veritext Legal
3 Solutions. The time is 1:18 p.m. We're off the
4 record.

5 (Off the record discussion.) 01:18

6 THE VIDEOGRAPHER: The deposition is not
7 concluded. We are going back on the record. It's
8 1:19.

9 BY MS. LLAGUNO:

10 Q. Ms. Tedla, we just want to make clear to 01:19
11 you, if you're refusing to testify today, we're
12 going to go ahead and move to compel your testimony
13 in court.

14 A. Yeah.

15 Q. Is that understood? 01:19

16 A. Yeah. The first time when I testify you
17 told me I was excused.

18 Q. Okay.

19 A. And if I have to go to court before the
20 judge I am going to testify. I don't have a choice. 01:19
21 It's not my choice to have to --

22 THE REPORTER: Slow down, please.

23 THE WITNESS: Okay. If -- if I get
24 subpoenaed, I'll testify.

25 BY MS. LLAGUNO: 01:19

1 Q. Understood. But just so you understand, 01:19
2 this is also a subpoena for testimony.

3 A. No, that's the thing. Like I showed up.

4 You know what? That's the thing. I had
5 advice with a lawyer, because last time when I 01:19
6 talked to Steve Russell --

7 (Reporter clarification.)

8 A. Steve Russell.

9 Q. Okay. That's all we need.

10 Q. They advise me -- 01:19

11 MS. LLAGUNO: Go off.

12 THE WITNESS: -- it was the last time I
13 testify. I didn't know I have to come back. If I
14 knew, I would talk to a lawyer and get advice, so
15 that's why. 01:19

16 THE VIDEOGRAPHER: This concludes today's
17 testimony. The time is 1:20 p.m. We're off the
18 record.

19 (At the time of 1:20 p.m. the deposition
20 was concluded.)

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DECLARATION

I hereby declare I am the deponent in the within matter; that I have read the foregoing transcript and know the contents thereof; and I declare that the same is true of my knowledge except as to the matters which are therein stated upon my information or belief, and as to those matters, I believe them to be true.

I declare under the penalties of perjury under the laws of the United States that the foregoing is true and correct.

This declaration is executed this _____ day of _____, 20____, at _____, California.

ABREHET TEDLA

C E R T I F I C A T E

I, the undersigned, a Certified Shorthand Reporter for the State of California, do hereby certify:

That the foregoing proceedings were taken before me at the time and place herein set forth; that a verbatim record of the proceedings was made by me using machine shorthand, which was thereafter transcribed under my direction; further, that the foregoing is an accurate transcription thereof.

I further certify that I am neither financially interested in the action nor a relative or employee of any attorney of any of the parties.

IN WITNESS THEREOF, I have this date subscribed my name this 7th day of May, 2019.



ASHALA TYLOR, CLR, RPR, CRR, CSR #2436

[& - examined]

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1 1:25 4:9 5:10 6:22 7:1 1-20 1:9 2:9 11625 12:19 12 1:25 12121 3:7 18-570137 1:4 2:4 5:16 1:15 2:18 5:2,5 1:18 9:3 1:19 9:8 1:20 2:19 10:17,19	a abrehet 1:16 2:16 4:3,9 5:11 6:10,18 9:1 11:19 accurate 12:11 action 1:12 2:12 5:24 12:13 actions 5:14 advice 8:8 10:5,14 advise 10:10 affiliations 6:2 affirmed 6:11 afternoon 5:4 agree 5:9 ahead 9:12 al 5:13 allowed 8:4 angeles 3:8 answer 4:15 appearance 3:14 appearances 3:1 6:2 appeared 7:22 april 1:18 2:19 5:1 5:5 ashala 1:22 2:20 5:21 12:20 asmelash 4:10 attached 7:2 attorney 12:14 audio 5:8	california 1:1,17 2:1,18 3:8 5:1,15 5:19 11:15 12:4 call 8:15 called 8:15,17 case 1:4 2:4 5:16 cassia 3:18 5:20 cell 5:7 certified 12:3 certify 12:5,12 cgc 1:4 2:4 5:16 chance 7:11,14 choice 9:20,21 clarification 8:20 10:7 clear 9:10 clr 1:22 2:20 12:20 come 7:13 10:13 commencing 2:18 compel 9:12 complainant 3:13 concluded 9:7 10:20 concludes 8:25 10:16 conference 5:18 contents 11:5 continue 5:8 correct 7:9,25 11:11 counsel 3:1 5:11 6:1,4,6 county 1:2 2:2 5:15 court 1:1 2:1 5:14 5:21 6:8 8:16,17 9:13,19	crr 1:22 2:20 12:20 csr 1:22 2:20 12:20
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[excused - set]

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[shorthand - yeah]

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California Code of Civil Procedure

Article 5. Transcript or Recording

Section 2025.520

(a) If the deposition testimony is stenographically recorded, the deposition officer shall send written notice to the deponent and to all parties attending the deposition when the Original transcript of the testimony for each session of the deposition is available for reading, correcting, and signing, unless the deponent and the attending parties agree on the record that the reading, correcting, and signing of the transcript of the testimony will be waived or that the reading, correcting, and signing of a transcript of the testimony will take place after the entire deposition has been concluded or at some other specific time.

(b) For 30 days following each notice under subdivision (a), unless the attending parties and the deponent agree on the record or otherwise in writing to a longer or shorter time period, the deponent may change the form or the substance of the answer to a question, and may either approve the transcript of the deposition by signing it, or

refuse to approve the transcript by not signing it.

(c) Alternatively, within this same period, the deponent may change the form or the substance of the answer to any question and may approve or refuse to approve the transcript by means of a letter to the deposition officer signed by the deponent which is mailed by certified or registered mail with return receipt requested. A copy of that letter shall be sent by first-class mail to all parties attending the deposition.

(d) For good cause shown, the court may shorten the 30-day period for making changes, approving, or refusing to approve the transcript.

(e) The deposition officer shall indicate on the original of the transcript, if the deponent has not already done so at the office of the deposition officer, any action taken by the deponent and indicate on the original of the transcript, the deponent's approval of, or failure or refusal to approve, the transcript. The deposition officer shall also notify in writing the parties attending the deposition of any changes which the deponent timely made in person.

(f) If the deponent fails or refuses to approve the transcript within the allotted period, the

deposition shall be given the same effect as though it had been approved, subject to any changes timely made by the deponent.

(g) Notwithstanding subdivision (f), on a seasonable motion to suppress the deposition, accompanied by a meet and confer declaration under Section 2016.040, the court may determine that the reasons given for the failure or refusal to approve the transcript require rejection of the deposition in whole or in part.

(h) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to suppress a deposition under this section, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

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VERITEXT LEGAL SOLUTIONS
COMPANY CERTIFICATE AND DISCLOSURE STATEMENT

Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

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